

Land Revenue Act, 1977

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 14

Land Revenue Act, 2034

Date of Royal Seal and Publication: 2034.9.18

Amending Acts:

1. Land Revenue (First Amendment) Act, 2040 2040.7.13
2. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
3. Land Revenue (Second Amendment) Act, 2045 2045.6.26
4. Land Revenue (Third Amendment) Act, 2046 2046.7.11
5. Act to Amend Certain Nepal Acts Relating to Finance, 2047 2047.8.27
6. Judicial Administration Act, 2048 2048.2.16
7. Land Revenue (Fourth Amendment) Act, 2049 2049.9.18
8. Land Revenue (Fifth Amendment) Act, 2054 2054.8.26

Date of Authentication and Publication:

9. Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 2066.10.7
10. Certain Nepal Acts Amendment Act, 2072 2072.11.13
11. Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074 2074.6.30
12. Act to Amend Certain Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080 2080.12.30

Act No. 25 of the year 2034

An Act Made to Provide for Matters Relating to Land Revenue

Preamble: Whereas it is expedient to amend and consolidate the provisions relating to the collection and realization of land revenue and to make some additional provisions relating to the cultivation of land,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. Chapter 1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Land Revenue Act, 2034".
(2) This Act extends throughout Nepal Removed by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066..
(3) This Act shall come into force in such districts and from such date as the Government of Nepal may, by notification in the Nepal Gazette, specify. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
(a) "Land Revenue Office" means an office established pursuant to Section 3.

(b) "Land Revenue" means the land revenue payable to the Government of Nepal by the landholder under the prevailing Nepal law, and any other tax of a similar nature, and the term also denotes the charge leviable for non-payment of land revenue within the period prescribed by this Act. Added by the Fourth Amendment.(b1) "Land Revenue Officer" means the Chief Land Revenue Officer appointed by the Government of Nepal, Removed by the Fifth Amendment a Land Revenue Officer, or any other officer appointed by the Government of Nepal to exercise the powers of a Land Revenue Officer under this Act, or the head of a Land Revenue Office.

Amended by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074.(b2) "Government Land" means land other than houses, buildings or land under the right, ownership, control or authority of the Government of Nepal; roads, pathways or railways; forests, jungles or trees and shrubs in forests or jungles; rivers, streams, rivulets, lakes, ponds and their banks; canals, ditches or fallow, barren land; minerals or mineral substances; mountains, cliffs, rocks, slopes, sandy banks; public gardens; and land held in the name of the public, community, Guthi (trust) or any individual. Amended by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074.(b3) "Public Land" means land that has existed since time immemorial for public purposes, such as houses, land, drains or roads, wells, water spouts, water taps, ponds and their banks; passage for cattle, grazing grounds, pasture lands, cremation sites, burial grounds, cemetery land; rest houses, pavilions, temples, places of worship, monuments, monasteries, shrines, chaityas, gumbas, stupas, mosques, Eidgahs, churches, chowks, platforms, rest stops, or land containing such structures; land where markets, fairs, public recreation or sports take place; private land provided by anyone for public purposes; or other land designated as public land by the Government of Nepal by notification in the Nepal Gazette. Added by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074.(b4) "Community Land" means land kept by a community for its own use.

(c) "Year" means a fiscal year. Added by the Act to Amend Certain Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(c1) "License" means a license issued pursuant to Section 26(B) to conduct real estate transactions.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
Chapter 2

Establishment of Land Revenue Office

3. Establishment of Land Revenue Office: (1) The Government of Nepal shall establish Land Revenue Offices in each district Amended by the Fourth Amendment.as necessary. Added by the Fourth Amendment.(1A) A Land Revenue Officer may delegate all or some of his/her powers to officers of officer level under his/her authority, subject to his/her general supervision and control.

(2) The Revenue Offices (Mal Adda) and Treasury and Collection Offices (Kosh tatha Tahsil Karyalaya) existing at the time of the commencement of this Act shall, after such commencement, automatically be converted into Land Revenue Offices.

(3) Works initiated by the Revenue Offices or Treasury and Collection Offices under the then prevailing Nepal law at the time of the commencement of this Act which remain incomplete shall, after such commencement, be continued by the Land Revenue Offices. 4.

Transfer of Land Administration Work to Land Reform Officer and Land Revenue Office: (1) The Land Administration Offices existing at the time of the commencement of this Act shall, after such commencement, automatically be converted into Land Reform Offices, and the Land Administrators shall be converted into

Land Reform Officers, and after the commencement of this Act, the work under the Land Related Act, 2021 shall be done by the Land Reform Office or Land Reform Officer under that Act. (2) Works under the Land Related Act, 2021 initiated by a Land Administration Office or Land Administrator under the Land Administration Act, 2024 at the time of the commencement of this Act which remain incomplete shall, after such commencement, be continued by the Land Reform Office or Land Reform Officer under the Land Related Act, 2021. (3) Works other than those mentioned in sub-section (2) initiated by a Land Administration Office or Land Administrator under the Land Administration Act, 2024 at the time of the commencement of this Act which remain incomplete shall, after such commencement, be continued by the Land Revenue Office under this Act. 5. Functions of Revenue Office, Treasury and Collection Office or Land Administration Office under Other Nepal Laws to be Performed by this Land Revenue Office: The functions which, at the time of the commencement of this Act, were to be performed by a Revenue Office, Treasury and Collection Office or Land Administration Office under any other prevailing Nepal law shall, after the commencement of this Act, subject to Section 4, be performed by the Land Revenue Office, and the functions to be performed by the head of a Revenue Office, the chief of a Treasury and Collection Office, or a Land Administrator shall be performed by the head of the Land Revenue Office, and in those laws, references to such office or officer shall be deemed to be references to the Land Revenue Office or the head of the Land Revenue Office. Chapter 3 Work Relating to Registration of Land 6. Registration of Land: (1) The Land Revenue Office shall register and maintain a record of every piece of land within the district as prescribed. (2) For the purpose of sub-section (1), while preparing the land registration book, it shall be prepared according to the landowner registration records prepared from survey and inspection where such survey and inspection has been conducted, and according to the register available in the office or the register received from the Land Reform Office or other office where landowner registration records have not been prepared or survey and inspection has not been conducted.

Provided that, in the case of land where the registered owner has died or the right has been transferred to another, the Land Revenue Office shall, if necessary, depute a field officer (Dor) and prepare an updated register to register the land in the name of the person having such right. Added by the Fourth Amendment.(3) While preparing the land registration book pursuant to sub-section (2), each Land Revenue Office may require the concerned landholders to provide prescribed details, and it shall be the duty of every landholder to provide the details so requested. 7. Special Provisions Relating to Registration of Land: (1) While preparing the registration book pursuant to sub-section (2) of Section 6, if any land was missed for survey mapping during the survey under the Land (Survey and Inspection) Act, 2019, the Land Revenue Office may, with the consent of the Survey Department, on the recommendation of a committee Amended by the Fourth Amendment.prescribed, cause such land to be surveyed and mapped and register it. Added by the Fourth Amendment.(1A) Notwithstanding anything contained elsewhere in this Act, if the Government of Nepal deems necessary, it may, by notification in the Nepal Gazette, constitute a commission or committee with one chairperson and up to four members to resolve problems arising for the purpose of registering land of any person, class or area and to make decisions relating to land registration, and the functions, duties and powers of such committee or commission shall be as prescribed in the modality for the formation of such Added by the Fifth Amendment.commission or committee. Amended by the Fifth Amendment.(2) If any land surveyed and mapped under the Land (Survey and Inspection) Act, 2019 was omitted for registration, the Land Revenue Office may, upon necessary inquiry into the original registration, revenue and possession of such land, and on the recommendation of the prescribed committee, following the prescribed procedure, register such land. The Land Revenue Office shall make a final decision on such registration within two years from the date of application. Removed by the Fifth Amendment.(2A)

(3) If there is a discrepancy in the name, surname, residence, age Added by the Fifth Amendment.or name and surname of the father, grandfather, husband or father-in-law of the landholder, or in the plot number, area or type of land, or if double registration has occurred, the Land Revenue Office may, after necessary inquiry, correct such matter and maintain the registration. 7A. Authority to Provide a Single Landholder Identification Number: The Land RevenRemoved by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066.ue Department may make necessary arrangements to provide a single landholder identification number to landholders for all land held in their name within

8.

Work Relating to Registration, Name Transfer, Entry and Deletion of Entries: (1) The work of registration of deeds, name transfer, entry and deletion of entries under prevailing law shall be performed by the Land Revenue Office. (2) For the purpose of determining the consideration amount in a deed to be registered, the prescribed committee shall fix the minimum value of land in the concerned area. (3) While registering or making entries of land by the Land Revenue Office based on a compromise deed executed under prevailing law, such land shall be registered or entries made only if it matches the original registration, source (moth) or serial number (nambari) of the concerned land. (4) If an application is received from the concerned person to register land of a particular person for public purposes, the Land Revenue Office may, on the recommendation of the prescribed committee, delete the name of that person from such land. (5) If there is any change in the records of land on which a tenant (Mohi) is attached or which has been subject to action under the ceiling provisions, the Land Revenue Office shall inform the Land Reform Office of such change.

8A. Updating Survey Maps: (1) If it becomes necessary to amend the survey map in accordance with the registration records maintained pursuant to Sections 7 and 8, the Land Revenue Office shall send a written communication to the concerned Added by the Third Amendment.Maintenance Survey Branch, and upon receipt of such written communication, Added by the Fourth Amendment.the Maintenance Survey Branch shall also make necessary amendments to the survey map. (2) If it appears that there is inconsistency between the actual condition of the land and the survey map, the Land Revenue Office shall send a written communication to the Survey Department to correct the survey map, and upon receipt of such written communication, the Survey Department shall make or cause to be made necessary corrections to the survey map. 8B.

Freezing or Releasing Land and Houses: (1) If it appears necessary to freeze any land or house due to a dispute or any other reason, the Land Revenue Office may freeze such land or house. (2) If a written communication is received from any court, tribunal or government office under prevailing law to freeze any land or house or to release such frozen land or house, the Land Revenue Office shall freeze or release such land or house accordingly. (3) If any bank, financial institution established under prevailing law, or Amended by the Certain Nepal Acts Amendment Act, 2072.local level sends a written communication to freeze any land or house in connection with its financial transactions, or to release such frozen land or house, the Land Revenue Office shall, as prescribed, freeze or release such land or house. In the case of banks or financial institutions, the Land Revenue Office shall levy prescribed fees for such freezing or release. Chapter 4 Provisions Relating to Collection of Land Revenue 9. Authority to Collect Land Revenue: (1) The function, duty and authority to collect land revenue shall vest in the Land Revenue Office. Amended by the Fifth Amendment.(2) Notwithstanding anything contained in sub-section (1), the Government of Nepal may, by notification in the Nepal Gazette, delegate the authority to collect land revenue, which is being collected by the Land Revenue Office, to any government office or Amended by the Certain Nepal Acts Amendment Act, 2072.local level. Added by the Fifth Amendment.(3) The amount of land revenue collected by the Amended

by the Certain Nepal Acts Amendment Act, 2072.local level pursuant to sub-section (2) shall be deposited in its own fund. 10. Land Revenue to be Paid: Every landholder of land for which land revenue is payable to the Government of Nepal shall, each year, pay the land revenue determined for such land under prevailing Nepal law. 10A. Determination of Land Revenue Rate: Notwithstanding anything contained in Section 10, the rate of land revenue payable each year by a landholder under this Act may be determined by the Government of Nepal, or the Government of Nepal may prescribe that such land revenue rate be determined by the Amended by the Certain Nepal Acts Amendment Act, 2072.local level. 11. Time Limit for Payment of Land Revenue: The land revenue payable by a landholder shall be paid each year by the end of the month of Jestha (mid-June). Amended by the First Amendment. 12. Rebate on Land Revenue: A landholder who pays the land revenue for the year by the end of the month of Magh (mid-February) shall be entitled to a rebate of five percent of the annual land revenue leviable. 13.

Charge for Non-Payment of Land Revenue: If the land revenue is paid after the expiry of the period under Section 11 but by the 15th of Ashadh (end of June) of that year, the land revenue shall be collected together with a charge of five percent. 14. Statement of Land with Arrears of Land Revenue: Amended by the First Amendment.The Land Revenue Office shall prepare a prescribed statement of land for which land revenue remains unpaid even within the period under Section 13 Added by the Fifth Amendment.by the end of Ashadh (mid-July). Amended by the Certain Nepal Acts Amendment Act, 2072.If a government office or Amended by the Certain Nepal Acts Amendment Act, 2072.local level has collected the land revenue, such government office or Amended by the Certain Nepal Acts Amendment Act, 2072.local level shall prepare such statement within that period and send it to the Land Revenue Office. If the land on which revenue is in arrears as per such statement is to be sold by auction, Added by the Fifth Amendment.the Land Revenue Office shall publish a notice in prescribed places by the end of Ashwin (mid-October). Added by the Fifth Amendment. 15. Freezing of Land with Arrears of Revenue: The Land Revenue Office may freeze the land of a landholder whose land is shown in the statement under Section 14 to have arrears of revenue until the arrears are fully paid or until the land is sold by auction for the arrears. Provided that, the land so frozen may be cultivated as before. 16. Auction of Land: (1) Out of the land shown in the statement under Section 14 as having arrears of land revenue, the Land Revenue Office may, for the purpose of realizing the land revenue, sell by auction the plots of land with arrears, as prescribed. Amended by the First Amendment. Amended by the First Amendment.(2) If land is to be sold by auction under this section, such auction sale shall commence in the month of Mangsir (mid-November to mid-December). Added by the Fifth Amendment. (3) If no one accepts the auction sale under sub-section (1), the ownership of such land shall vest in the Government of Nepal, and the land so vested in the Government of Nepal may be sold or distributed as prescribed.

Provided that, even if the ownership of such land vests in the Government of Nepal, the tenant right (Mohiyani hak) existing on such land shall remain intact. (4) Out of the amount received from the auction sale under sub-section (1), after deducting the arrears of land revenue and a charge of fifty percent thereof, the remaining amount shall be refunded to the concerned landholder. (5) Until the land vested in the Government of Nepal under sub-section (3) is sold or distributed, its supervision and other arrangements shall be as prescribed. Amended by the First Amendment.(6) Notwithstanding anything contained in this section, if the land revenue is deposited from the 16th of Ashadh (early July) until the auction sale of the land, the Land Revenue Office shall collect the land revenue together with a charge at the rate of ten percent per annum. Amended by the Act to Amend Certain Nepal Acts Relating to Finance, 2047. Provided that, for arrears of land revenue prior to the commencement of this sub-section, the land revenue shall be collected together with a charge of thirty-five percent. 17. Extension of Time Limit for Payment of Land Revenue: (1) Notwithstanding anything contained in Section 11, if it appears that in any year, due to circumstances in any

district or Amended by the First Amendment.any area of a district or any person, the land revenue cannot be paid within the period specified in that section, the Government of Nepal may, by notification in the Nepal Gazette, extend the time limit for payment of land revenue. (2) If the time limit is extended under sub-section (1), the action under Sections 13, 14, 15 and 16 shall be taken only after the expiry of the extended period in the concerned Amended by the First Amendment.area of the district, and in such a case, the periods mentioned in those sections for various actions shall be similarly extended accordingly. 18. Issuance of Receipt: The Land Revenue Office or the Amended by the Fifth Amendment.government office or local level collecting land revenue shall issue a receipt for the land revenue collected to the person paying it. 19.

Relating to Collection of Land Revenue on Land Exceeding Ceiling: Land exceeding the ceiling allowed to be held under the Land Related Act, 2021, which has been obtained by the concerned authority but not yet transferred by way of sale or distribution, shall continue to be in the possession and use of the original landholder, who shall continue to pay land revenue to the Government of Nepal as before, and the land revenue on such land shall be collected and realized from that landholder. Provided that, in case of arrears of land revenue on such land, the land shall not be auctioned, but the arrears of land revenue shall be deducted from the compensation payable to such landholder. Chapter 5 Provisions Relating to Remission of Land Revenue 20. Remission of Land Revenue in Case of River Cutting, Sand Deposition or Landslide: (1) If in any year, any land subject to land revenue is cut by a river or stream, becomes covered with sand, suffers a landslide, or is buried by a landslide resulting in no main crop, the concerned landholder shall submit an application to the Land Revenue Office within the prescribed period and in the prescribed format providing details. Provided that, in the case of land with standing crops, such crops shall not be harvested before the inspection under sub-section (2). (2) To inquire into the matters mentioned in the application received under sub-section (1), the head of the Land Revenue Office shall, within thirty days, go himself/herself or depute a field officer to conduct or cause to be conducted an inquiry. If, upon such inquiry, it appears that land revenue should be remitted for that year, the Land Revenue Office shall determine the percentage of land revenue to be remitted, grant the remission, and inform the Land Revenue Department within seven days. (3) If, from the inquiry under sub-section (2), it appears that any land has become permanently useless or worthless, the Land Revenue Office shall report to the Government of Nepal for deletion of the entry of such land, and if the Government of Nepal deems appropriate, it shall order the Land Revenue Office to delete the entry of such land. 21.

Remission of Land Revenue in Case of Drought or Other Natural Calamity Affecting Crops: (1) If in any year, the main crop in any area is damaged due to drought, hailstorm, locust infestation, flood, or any other natural calamity, and if it appears necessary to grant partial or full remission of land revenue after necessary inquiry, the Land Revenue Office shall report to the Government of Nepal with its opinion. Amended by the Third Amendment. (2) Upon receiving a report under sub-section (1), or if the Government of Nepal becomes aware of such situation by any other means, Removed by the Act to Amend Certain Nepal Acts Relating to Finance, 2074. the Government of Nepal shall remit such amount of land revenue as may be deemed necessary. Chapter 6 Provisions Relating to Functions, Duties and Liabilities in Collecting Land Revenue Amended by the Fifth Amendment.22. Authority to Exercise Powers under this Act: When collecting land revenue pursuant to sub-section (2) of Section 9, any government office or Amended by the Certain Nepal Acts Amendment Act, 2072.local level shall also be entitled to exercise all powers vested in the Land Revenue Office in relation thereto, except the power to sell land by auction. Amended by the Fifth Amendment.23. Liability for Loss or Damage: If any person, while collecting land revenue, intentionally or with bad faith, does any act contrary to this Act or prevailing law and causes any kind of loss or damage to the Government of Nepal or any other person, the person engaged in the collection of land revenue shall

bear the loss or damage and other liabilities. If the amount of land revenue collected is subject to loss or damage, such person shall also be subject to proceedings under prevailing law. Chapter 7 Provisions Relating to Cultivation of Land Amended by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074.24. Prohibition on Registration or Cultivation of Government, Public or Community Land: (1) Government, public or community land shall not be registered or cultivated in the name of any particular individual. Provided that, nothing in this sub-section shall be deemed to prevent the Government of Nepal from making arrangements for public land for public purposes, for government land for any work approved by the Government of Nepal, and for community land for any work approved by the concerned community. (2) If any person has registered and cultivated government, public or community land in his/her own name before or after the commencement of this section, such registration shall be void ab initio.

The Land Revenue Office or an officer designated by the Government of Nepal shall delete the registration entry of such land in the name of that individual.

(3) The concerned Land Revenue Office shall register government, public or community land and maintain the records thereof updated as prescribed. 25. Prohibition on Cultivation of Unregistered Land: No person shall cultivate or cause to be cultivated any unregistered land. Provided that, nothing in this section shall be deemed to prevent the cultivation of such land after the prescribed committee under Section 26 has granted approval for cultivation, or after the land has been sold or distributed under prevailing Nepal law relating to resettlement. 26. Cultivation of Unregistered Land with Approval: (1) For cultivating unregistered land, approval must be obtained from the prescribed committee.

(2) An application for approval to cultivate unregistered land shall be submitted to the prescribed committee.

(3) Only a person who does not have land up to the prescribed limit as a tenant or landholder shall be entitled to submit an application under sub-section (2).

(4) The prescribed committee may, subject to this Act, the rules made under this Act, and other prevailing Nepal law, grant approval to a person under sub-section (3) to cultivate unregistered land.

(5) While granting approval under sub-section (4), the prescribed committee shall determine the conditions for cultivating such land and the fees therefor as prescribed. Provided that,

(a) Nothing contained in this section shall confer on such committee the authority to grant approval to cultivate land which cannot be cultivated or registered under sub-section (1) of Section 24. Amended by the Fifth Amendment.

(b) The prescribed committee shall not grant approval to cultivate land which, for any reason, cannot be currently registered for cultivation in the name of any person.

(c) If applications for approval to cultivate the same land are received from more than one person, permission shall be granted according to the prescribed priority.

(6) Notwithstanding anything contained in this section, if land in any area is to be settled, land up to the limit prescribed by the Government of Nepal may be sold and distributed under prevailing Nepal law relating to resettlement.

(7) While granting approval to cultivate land under this section or while selling and distributing land for settlement under sub-section (6), the prescribed committee or the concerned authority shall cause such land to be registered.

(8) The Land Revenue Office shall implement the decisions or orders made by the concerned committee or authority under this section as prescribed. Added by the Act to Amend Certain Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.## Chapter 7A

Real Estate Transactions

26A.

License Required for Real Estate Transactions: Any person conducting real estate transactions exceeding the area or amount limit specified in the notification, in an area designated by the Government of Nepal by notification in the Nepal Gazette, shall obtain a license under this Act. Explanation: For the purpose of this Chapter, "real estate transaction" means the act of assisting in the purchase or sale of any house or land of another person, whether for a fee or free of charge, advising a person purchasing or selling such house or land, or providing any other type of professional service in relation thereto, except for purchase and sale made by mutual agreement between natural persons. 26B. Application for License: (1) A person desiring to obtain a license to conduct real estate transactions shall submit an application, along with prescribed details, documents and fees, to the authority designated by the Government of Nepal by notification in the Nepal Gazette. (2) While designating an authority under sub-section (1), the Government of Nepal may designate any authority of the Government of Nepal, the provincial government, or the local level. (3) Upon examining the application received under sub-section (1), if the contents appear reasonable, the concerned authority shall, specifying prescribed conditions, issue a license to the applicant to conduct real estate transactions. (4) A license issued under sub-section (3) shall be valid for five years. (5) The format of the license, renewal, renewal fees and other related provisions shall be as prescribed. 26C. Inspection and Supervision: (1) The authority issuing the license may issue directives to, and inspect and supervise, the licensee. (2) It shall be the duty of the licensee to comply with directives given by the authority under sub-section (1), to provide necessary assistance to the inspecting or supervising authority during inspection or supervision, and to provide required details and documents. 26D. Cancellation of License: Notwithstanding anything contained elsewhere in this Chapter, the authority issuing the license may cancel the license at any time under the following circumstances: (a) if the license was obtained by submitting false details, (b) if the conditions specified at the time of issuing the license are violated, (c) if directives given by the licensing authority under this Act or the rules made under this Act are violated, or (d) if the license is not renewed. 26E.

Penalty: (1) If any person conducts real estate transactions without a license, such person shall be liable to a fine equal to the value of the transaction if the value is known, or to a fine of up to twenty-five lakh rupees if the value is not known, or imprisonment for up to six months, or both. (2) If a licensee conducts real estate transactions contrary to this Act, the rules made under this Act, or the conditions of the license, the licensing authority may impose a fine on such person equal to the value of the transaction if the value is known, or a fine of ten lakh rupees if the value is not known. 26F. Case to be Filed with the Government of Nepal as Plaintiff: In a case punishable under sub-section (1) of Section 26E, the case shall be filed in the concerned District Court with the Government of Nepal as the plaintiff, and such case shall be deemed to be included in Schedule-1 of the National Code (Criminal Procedure), 2074. Chapter 8 Miscellaneous 27. Recovery of Arrears from Jimmadar (Revenue Collector): Land revenue remaining outstanding from a Jimmadar at the time of the abolition of the Jimindari system shall be recovered from him/her as per the Jimindari records, like other government dues under prevailing Nepal law. 28. Penalty for Obstructing or Opposing Land Revenue Collection: If any person obstructs or opposes the work of collecting or realizing land revenue, the head of the Land Revenue Office may impose a fine of up to five hundred rupees on such person. Amended by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074.29. Penalty for Registering or Cultivating

Government or Public Land: If any person registers or cultivates government or public land, the person committing or causing such offence shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees, or both. Added by the Fifth Amendment.29A. Penalty for Submitting False Details: If, in the course of work or proceedings conducted by the Land Revenue Office under prevailing law, it appears that any person has intentionally submitted false details, the Land Revenue Office may, while making a decision in relation thereto, impose a fine of up to one thousand rupees on the person submitting such details. 30.

Penalty for Cultivating Land without Approval: If any person cultivates or causes to be cultivated any unregistered land without obtaining approval under sub-section (4) of Section 26, the head of the Land Revenue Office shall impose a fine of up to ten times the annual land revenue amount applicable to such land under prevailing law from the year of cultivation, and shall confiscate such land. The procedure relating to such confiscated land shall be as prescribed. 31. Appeal: An appeal against a decision made by the Land Revenue Office under Sections 7, 8, 8B, 28, 29 and 30 of this Act, or by an authority designated under Section 26B, Amended by the Act to Amend Certain Acts Relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. shall lie to the Amended by the Certain Nepal Acts Amendment Act, 2072.District Court. Provided that, an appeal against a decision made by the Land Revenue Office under Section 7 raising a question of right and title which requires a decision by the court shall not lie to the Amended by the Certain Nepal Acts Amendment Act, 2072.District Court. 32. Powers Equivalent to a Court: While performing work under this Act, the head of the Land Revenue Office shall have powers equivalent to those of a court under prevailing Nepal law in relation to taking statements, summoning parties, hearing evidence, and requiring submission of documents. Added by the Fourth Amendment.32A. Departmental Action: If it appears that any action required to be taken by the Land Revenue Office under this Act has been done in a mala fide manner, the concerned officer or employee shall be subject to departmental punishment. Added by the Fifth Amendment.32B. Power to Annul Action: If, before a complaint is filed in court, it comes to the notice of the Director General of the Land Revenue Department, upon application by any person or otherwise, that a serious error has been made under prevailing law in the name transfer, entry or deletion, or in the amendment of details mentioned in sub-section (3) of Section 7, by a Land Revenue Officer, the Director General may annul such decision and make a new decision in accordance with law. 33. Power to Make Rules: The Government of Nepal may make rules for carrying out the purposes of this Act. 34. Power to Remove Difficulties: If any difficulty arises in the implementation of this Act, the Government of Nepal may, by notification in the Nepal Gazette, issue necessary orders to remove such difficulty. 35.